

Iqbal Alias Akbal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 13 February 2020 · WRIT - C No. 5070 of 2020 · **Writ disposed of; petitioner relegated to Clause 6.5; coercive recovery stayed 40 days.**

HEADNOTE

A writ challenging an electricity recovery certificate on the ground that the underlying bill is incorrect is not to be entertained when the statutory remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005 is available. The consumer may approach the Clause 6.5 authority, which is to decide by a speaking order after hearing; coercive action on the recovery certificate is stayed for a short period pending that recourse.

FACTUAL SUMMARY

The petitioner, an electricity consumer, sought certiorari to quash a recovery certificate dated 5 January 2020 issued against him for Rs. 3,86,656 plus other charges, and a mandamus directing consideration of his representation dated 26 April 2019. He disputed the correctness of the bill underlying the recovery. Counsel for the Electricity Department was heard. The Court treated the controversy as a billing-correctness dispute.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — statutory remedy

HOLDING

Where the consumer disputes the correctness of the bill and seeks quashing of a recovery certificate in writ, the High Court will not entertain the petition because Clause 6.5 of the U.P. Electricity Supply Code, 2005 supplies a statutory remedy. The consumer may approach the appropriate authority under Clause 6.5 within the time allowed; that authority is to consider and decide the application in accordance with law by a speaking order after hearing. Coercive action on the impugned recovery may be stayed for a limited period, ceasing if the consumer does not approach within time. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy Writ against a recovery certificate founded on a disputed bill was declined and the consumer was relegated to Clause 6.5 as the available statutory forum. ¶ 1

clause-6.5-statutory-remedy-disputed-bill A dispute as to correctness of the bill was held to lie under Clause 6.5, not in a writ seeking quashing of the recovery certificate. ¶ 1

bill-correction-clause-6.5 Bill-correction grievance was directed to the Clause 6.5 authority, with a time-bound speaking order and a short stay of coercive recovery. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL AND VALIDITY OF THE RECOVERY CERTIFICATE DATED 5 JANUARY 2020

Merits left to the Clause 6.5 authority; the writ was not decided on the bill or the recovery. ¶ 1